

On the Black Market, Drugs Are in Easy Reach of Public

By PETER ALFANO
with MICHAEL JANOFSKY

The spoils of a little-publicized drug war lay on a table in the office of Philip Halpern, a United States Attorney in San Diego. There were bottles, vials and a syringe, all filled with anabolic steroids, confiscated by Federal authorities during arrests in steroid-trafficking cases.

Mr. Halpern's collection has been growing, but not as fast as the burgeoning steroid black market in the United States, which now exceeds \$100 million a year, according to Federal law-enforcement officials. Illegal use of steroids has spread to the general public, and people are using the drugs without medical supervision, at potentially great risk to their health.

Despite the perception that athletes are the primary users of steroids, law-enforcement officials say that athletes probably account for only 10 percent of all users.

Concern With Appearance

"The majority of steroids are consumed by individuals who are concerned by how they look — factory workers, lawyers, policemen and firemen — and there is even a smaller market now in kids," said Mr. Halpern, whose office has prosecuted 151 cases in the last three years.

Steroids are rapidly becoming as easy to obtain as aspirin. Unlike aspirin, however, they are not sold over the counter in a neighborhood pharmacy. But they are readily available at almost any fitness center or body-building gym.

The sale or purchase of steroids

Steroids in Sports

Second of five articles.

without a prescription is illegal in this country, and they are legitimately prescribed only for certain unusual medical conditions. (A description of steroids appears on Page B16.)

Warnings on Prolonged Use

Athletes and body builders use steroids, which are believed to enhance muscle growth, to try to gain an unfair edge in strength, stamina and speed in competition. This is why the substances are banned by the International Olympic Committee and most other sports governing bodies.

Many doctors warn that prolonged use of steroids might cause cancer, heart disease, hypertension, high cholesterol or sterility, although there is only limited clinical evidence to support their claims. Also, because steroids are now available almost exclusively on the black market, there is concern that the consumer is getting adulterated or mislabeled products that may pose additional health hazards.

"I want to be optimistic," the

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Steroids Easy to Get For the General Public

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35-year-old Mr. Halpern said. "Realistically, I want to believe that with increased public awareness and penalties, there will be less use of steroids."

But he and other authorities say they can barely keep up with suppliers because the steroid communication and distribution network is extremely sophisticated and geographically widespread. Illegal steroids are available in nearly all large population centers and most small towns in the United States.

"We can do a bust on one coast and within hours, it is known everywhere in the country," said a Federal Government investigator familiar with steroid-trafficking cases, who asked that his name not be used.

The drugs are coming into the United States from Europe, South America and Mexico. In addition, officials estimate that anywhere from 5 to 20 clandestine laboratories in the United States are in operation.

Law-enforcement officials and steroids traffickers say that perhaps 95 percent of black-market steroids are counterfeit — manufactured in clandestine laboratories — and this also greatly increases the potential risks for users.

The authorities are hoping new legislation will help them crack down on this different sort of drug pusher.

Last month, Congress passed the Omnibus Anti-Substance Abuse Act, which will stiffen penalties for illegal steroid use. The new law, which will be signed today by President Reagan, will upgrade trafficking from a one-year misdemeanor to a three-year felony, doubled when the steroids are sold to minors. It also includes a maximum fine of \$25,000.

'Muscle Mentality' Creates a Demand

The authorities say that the major distribution points for the black-market drugs are the body-building gyms and the fitness centers, where steroids can be purchased directly or

business reasons. "I was into bench-pressing, and the better I could do, the better it was for my gym business," he said.

The Federal Government investigator said that there is not enough money or manpower available to the Food and Drug Administration, the Federal Bureau of Investigation or state law-enforcement agencies to police gyms with undercover agents.

Prosecution of steroid trafficking still has a low priority compared to cocaine and heroin cases, Mr. Halpern said. But despite limited resources, progress is being made, he said. He pointed out that before 1984, no one had ever prosecuted a steroid case at any level of government.

"I figure that now, I've indicted 60 or 70 people and charged about 100 more," Mr. Halpern said. "I started this about two or three years ago. You could have literally made millions in steroid trafficking then because no one was investigating it. I think we've made it clear that trafficking is illegal. Five years ago, no one knew that."

Atmosphere That Lets Dealers Take Chances

Five years ago, the Federal Government was unaware of the extent of steroid use in this country. Penalties for trafficking were not clearly defined, and the penalties that existed were relatively minor compared to those for dealing cocaine and heroin. The penalty was probation with fines ranging from \$500 to \$1000.

Thus, steroid dealers were willing to take chances.

"A lot of European steroids were just being mailed in," said Dan Duchaine, who wrote "The Underground Steroid Handbook," and who was indicted in a case prepared by Mr. Halpern with Mr. Jenkins and 32 others in May 1986 as part of a steroid-trafficking ring that operated in southern California and distributed the drugs in California and six other states.

In addition, Mr. Duchaine said, some European athletes who came to train in southern California financed their trips by bringing along steroids



Phillip Halpern, assistant U.S. Attorney for the Southern District of California, in his San Diego office with a variety of steroids.

"the nice guys" to law-enforcement officials. The nice guys said their motives were making a profit and helping athletes achieve success.

"They thought they were doing a service," the Federal Government investigator said. "These new people are only in it for the buck. They don't give a damn about anything else. There's all sorts of garbage out there."

"Most people are astonished about how much money is involved," the investigator added. "They've found gym bags with \$170,000 in them. Clearly, I think the demand is rising."

When Mr. Duchaine was in jail for several weeks after his arrest in 1986, he said, he met a cocaine trafficker who boasted about how he could easily corner the market on steroids if he chose to.

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illegal-drug consumer was a victim of fraud. "For example, there was a monkey-growth hormone coming out of Florida that was really vitamin B12," he said. "Two bucks and they were selling it for \$150 a bottle."

He bases these opinions on samples he has received through the underground network.

In another case being prosecuted in San Jose, five defendants were indicted for distributing steroids that they labeled as made in East Germany but were actually manufactured clandestinely in the United States.

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"The extent of the black-market consumer is male, between 18 and 30, insecure, seeking acclaim and rewards," said David Jenkins, a former British Olympic sprinter who was indicted in a case prepared by Mr. Halpern in May 1986 and who is awaiting sentencing. "They come from a gym environment, where a muscle mentality pervades and creates a demand for bigger bench-presses, bigger squats. But they would rather not take a long-term approach. They want steroid McDonald's."

Doug Casey, a former body builder, who owned a gym in Portland, Ore., said, referring to steroids: "I got them from people in the weight-lifting community. I saw people spending little time in the gym and making great gains. I heard the stuff was bad for you but getting results."

Ingestion of steroids alone does not build muscles, according to medical evidence. They must be taken in conjunction with related exercise.

Mr. Casey, who is now a physical therapist and an outspoken critic of steroid use, said he took the drugs for

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Mr. Duchaine, who is awaiting sentencing on one count of conspiracy to defraud the Federal Government and one count of interstate sale of the anabolic steroid Dianabol, said that the only time mailing became more dangerous was during the Christmas season, when customs agents were more diligent.

Mr. Duchaine said he occasionally used United Parcel Service to send customers their orders. The court papers filed in his trafficking case cited several other instances when either the regular mail or express mail was used to transport the drugs.

The irony, Mr. Halpern said, is that successfully prosecuting the so-called amateurs, like Mr. Jenkins and Mr. Duchaine, has opened the door to a more sinister criminal element — cocaine and heroin dealers — who understand there is money to be made in steroids.

In the cases Mr. Halpern has prosecuted, as well as one in Los Angeles and another in San Jose, Calif., many of the defendants were body builders, former athletes and self-educated steroid experts. They are known as

merc.

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"The guy said he would just call all his contacts and tell them they were now going into the steroid business or he would kill them," Mr. Duchaine said.

Unlicensed Laboratories Start to Fill a Vacuum

The demand for counterfeit steroids increased in the United States over the last decade as the F.D.A. determined that generic steroids manufactured by pharmaceutical companies were of decreasing value to the medical community and limited their production. In the early 1980's, traffickers say, a considerable amount of steroids on the black market were those illegally diverted from these firms.

With demand increasing and supply dwindling, unlicensed labs began to flourish, trying to duplicate steroids like Dianabol, the drug of choice among athletes and body builders.

Counterfeit steroids, however, are frequently adulterated and mislabeled. That means a bottle might contain a steroid other than the one listed, or that the potency is below the stated amount.

Mr. Halpern said he also knows of two instances when steroid syringes were contaminated, resulting in the transmission of AIDS.

He said that he knew of three secret labs manufacturing steroids in the United States, located in Missouri, Florida and Washington. The Federal Government investigator said that when one lab is closed down by law-enforcement agencies, another invariably takes its place.

One of the larger current operations is believed to be in Colorado, at a site officials would not identify. Federal law-enforcement officials say it is extremely well financed, which leads them to suspect organized crime might be involved.

Mr. Duchaine, who knows of the operation only second-hand, called it "slick and totally unethical," adding that "the trouble is that not only are the steroids weaker, some of them have no steroid in them at all."

"Some of the water-based compounds have microorganisms that will cause you fever," he added. "Others are mislabeled."

He cited other instances when the

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They were exploiting a rumor in the steroids underground that the East Germans had improved a certain steroid, making it more potent. The drug was supposedly forbidden to be shipped out of East Germany, but that did not prevent the San Jose ring from passing off theirs as the real thing.

Not all counterfeit drugs have to be poor imitations, said Mr. Duchaine. He said that the counterfeit Dianabol his group was trafficking in 1986, when the F.D.A. took it off the market, was manufactured in a legitimate laboratory in Tijuana, Mexico, and was of first-rate quality. Anabolic steroids are over-the-counter drugs in Mexico.

"They were already making pharmaceutical drugs that had F.D.A. approval," Mr. Duchaine said. "So they were a pretty good outfit. And David Jenkins seemed to trust them. We thought it would be a good idea to make Dianabol because we could be assured of the quality."

It cost about \$1.45 to make a bottle containing 100 tablets of Dianabol. The trafficking ring initially sold them for approximately \$5.00 a bottle.

The laboratory in Tijuana, Laboratorios Milanos, was run by Juan Javier Macklis. He was named in the indictment with Mr. Jenkins and Mr. Duchaine, but can only be arrested by authorities in the United States if he enters this country. He ran advertisements in major newspapers in southern California, encouraging Americans to cross the border to purchase steroids.

It is illegal to bring the drugs into the United States, but Mr. Macklis left that problem to the ingenuity of the consumer. The shipments smuggled into this country by the ring were hidden in automobiles or carried across by couriers, who used routes favored by illegal aliens.

An informant eventually enabled customs agents and other Federal authorities to crack the ring. Despite their success, law-enforcement officials say that the answer to ending steroid use is eliminating demand rather than supply.

Mr. Halpern said this might be possible because steroid users are generally health-conscious and fitness-oriented. They would stop using the drug if convinced it was harmful, he said.

"As a prosecutor, I feel we are losing the war on drugs," Mr. Halpern said. "But I don't feel that way about steroids. I think we have a chance to stop people from using them."

A Description of Steroids

The chemical compounds known as steroids are widely distributed in nature and have widely varying functions essential to life. In humans, the two main types of steroids are anabolic and cortical.

The anabolic ones promote tissue growth by creating protein and other new substances. The main anabolic steroid is testosterone, the chief male sex hormone. Chemists have identified natural derivatives of testosterone and have synthesized others that are derived from testosterone.

It is believed that, in addition to attempting to enhance muscle growth, athletes use steroids because the drugs give them a sense of well-being, enabling them to train harder and recuperate more quickly.

The International Olympic Committee bans 16 anabolic steroids that it can identify in laboratory tests. Among the legitimate uses of anabolic steroids are the treatment of a hereditary skin disorder that produces hives and rare types of anemia.

Cortical steroids include several hormones formed in the outside, or cortex, of the adrenal gland. (There are two adrenal glands, one on top of each kidney.) Such drugs are often used to suppress inflammation, as in severe cases of arthritis. Among the other uses are these: countering serious attacks of asthma and as replacement therapy for people with adrenal insufficiency.